

Shripal Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 12 July 2019 · Writ-C No. 21963 of 2019 · Writ-C No. 21963 of 2019 · **Writ disposed; bill dispute relegated to Clause 6.5 and CGRF.**

HEADNOTE

A consumer disputing the correctness of an electricity bill and seeking a fresh bill after installation of check meters must apply to the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005, or approach the Electricity Consumer Redressal Forum. The High Court will not examine the bill in writ. A representation for correction is to be considered in accordance with law most expeditiously, if possible within one month.

FACTUAL SUMMARY

Shripal Singh approached the Allahabad High Court in Writ-C No. 21963 of 2019 against the State of U.P. and the distribution licensee. He disputed the correctness of his electricity bill and asked that a new bill be issued after check meters were installed. Counsel for the petitioner was heard, and Sri Pranjal Mehrotra accepted notices for the licensee respondents. The Division Bench of Pankaj Mithal and Saral Srivastava, JJ. heard the matter on 12 July 2019.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness

HOLDING

Where a consumer disputes the correctness of an electricity bill and seeks a fresh bill after installation of check meters, the remedy is to apply to the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005, or to get the grievance redressed before the Electricity Consumer Redressal Forum. The High Court will not decide the billing dispute in writ. If a representation for correction is filed, the Executive Engineer shall consider it in accordance with law most expeditiously, if possible within one month. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer disputing the correctness of an electricity bill and seeking a fresh bill after installation of check meters must apply to the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005, or approach the Electricity Consumer Redressal Forum.. ¶ 1

clause-7.10-forum-ombudsman-route-for-billing-grievances A consumer disputing the correctness of an electricity bill and seeking a fresh bill after installation of check meters must apply to the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005, or approach the Electricity Consumer Redressal Forum.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND WHETHER CHECK METERS SHOULD BE INSTALLED

Writ disposed without examining the bill or directing check meters. ¶ 1